



New South Wales

Coroners Amendment (Senior Next of Kin) Bill 2026

Explanatory note

This explanatory note relates to this Bill as introduced into Parliament.

Overview of Bill

The object of this Bill is to implement recommendations arising from the statutory review of the *Coroners Act 2009* (*the Act*) relating to—

- (a) determining the person who is, or is presumed to be, the senior next of kin of a deceased person for the Act and enabling coroners to appoint a person as the senior next of kin if the presumed senior next of kin is not available or is not an appropriate person to act as the senior next of kin, and
- (b) recognising extended family or kin structures in different cultures, including in Aboriginal and Torres Strait Islander cultures, and
- (c) enabling the senior next of kin to exercise functions verbally, and
- (d) making and applying for orders in relation to the release of a deceased person's remains.

Outline of provisions

Clause 1 sets out the name, also called the short title, of the proposed Act.

Clause 2 provides for the commencement of the proposed Act.

Schedule 1 Amendment of Coroners Act 2009 No 41

Schedule 1[1] and [3] make amendments to insert part headings in the Act, Chapter 1.

Schedule 1[4] makes amendments to the definitions section of the Act.

Schedule 1[5] amends the definition of *relative*.

Schedule 1[6]—

- (a) substitutes section 6A to provide for the person who is considered to be the senior next of kin of a deceased person, and
- (b) provides in proposed section 6B for the definition of *presumed next of kin*, and
- (c) provides in proposed section 6C for a coroner to appoint a person as the next of kin of a deceased person, and
- (d) provides in proposed section 6D for applications to the Supreme Court for an order to vary a coroner's appointment of the next of kin of a deceased person.

Schedule 1[7]–[9] make consequential amendments.

Schedule 1[10] provides for applications to the Supreme Court for an order to revoke a decision by a coroner to issue an exhumation warrant under the Act, section 91.

Schedule 1[12] substitutes the Act, section 96 to update provisions about objections by the senior next of kin of a deceased person to the carrying out of post mortem investigations by a coroner.

Schedule 1[13] makes a consequential amendment.

Schedule 1[14] substitutes the Act, section 98 to update provisions about the senior next of kin of a deceased person authorising another person to carry out a function of the senior next of kin.

Schedule 1[11] makes a consequential amendment.

Schedule 1[2], [15], [17]–[24] update language in the Act to remove references to the disposal of human remains.

Schedule 1[25]—

- (a) substitutes the Act, section 101 to provide for orders made by a coroner for—
 - (i) the burial, cremation or other interment of human remains, or
 - (ii) the delivery or handing over of human remains for anatomical or medical research, or
 - (iii) the removal of human remains from the State, and
- (b) provides in proposed section 101AA for an application to the Supreme Court for an order to vary—
 - (i) the person to whom an order under the Act, section 101 is given, or
 - (ii) the conditions of an order under the Act, section 101.

Schedule 1[16] makes an amendment consequent on Schedule 1[25].



New South Wales

Coroners Amendment (Senior Next of Kin) Bill 2026

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This PUBLIC BILL, originated in the LEGISLATIVE ASSEMBLY and, having this day passed, is now ready for presentation to the LEGISLATIVE COUNCIL for its concurrence.

Legislative Assembly

Clerk of the Legislative Assembly



New South Wales

Coroners Amendment (Senior Next of Kin) Bill 2026

No , 2026

A Bill for

An Act to amend the *Coroners Act 2009* to implement recommendations of the statutory review of the Act about the senior next of kin and other relatives of a deceased person and the release of human remains; and to make related and consequential amendments.

The LEGISLATIVE COUNCIL has this day agreed to this Bill with/without amendment.

Legislative Council

Clerk of the Parliaments

The Legislature of New South Wales enacts—	1
1 Name of Act	2
This Act is the <i>Coroners Amendment (Senior Next of Kin) Act 2026</i> .	3
2 Commencement	4
This Act commences on a day or days to be appointed by proclamation.	5

Schedule 1 Amendment of Coroners Act 2009 No 41

[1] Part 1.1, heading

Insert before section 1—

Part 1.1 General

[2] Sections 3(g), 15(1)(b)(i), 56(3) and 90(4)

Omit “disposal” wherever occurring.

Insert instead “interment or other disposition”.

[3] Part 1.2, heading

Insert after section 3—

Part 1.2 Interpretation

[4] Section 4 Definitions

Omit section 4(1), definitions of *relative*, *senior next of kin* and *the State*.

Insert in alphabetical order—

appointed next of kin—see section 6C(2).

authorised person, for Part 8.2—see section 95A.

child, of a deceased person, includes the following—

- (a) an adopted child of the deceased person,
- (b) a step-child of the deceased person,
- (c) a child for whose long-term welfare the deceased person had parental responsibility within the meaning of the *Children and Young Persons (Care and Protection) Act 1998*.

Note— The *Status of Children Act 1996* sets out legal presumptions about parentage that apply under the laws of the State.

death includes a suspected death.

deceased person includes a person who is suspected to have died.

legal personal representative, of a deceased person, means the person who was the legal representative of the deceased person immediately before the deceased person’s death.

member of extended family or kin, of a deceased person, means a person who, in accordance with the customs or traditions of the community of which the deceased person was a part, is a member of the deceased person’s extended family or kin.

not reasonably available, in relation to a person, means, at the relevant time—

- (a) a person of that type does not exist, or
- (b) the person cannot be reasonably contacted, or
- (c) the person is unwilling or unable to act in the relevant capacity.

parent, of a deceased person, includes the following persons—

- (a) an adoptive parent of the deceased person,
- (b) a step-parent of the deceased person,

	(c) a person who had parental responsibility, within the meaning of the <i>Children and Young Persons (Care and Protection) Act 1998</i> , for the long-term welfare of the deceased person,	1 2 3
	(d) a person who stood in loco parentis to the deceased person.	4
	Note— The <i>Status of Children Act 1996</i> sets out legal presumptions about parentage that apply under the laws of the State.	5 6
	presumed next of kin —see section 6B.	7
	relative —see section 5.	8
	relevant post mortem investigative function , for Part 8.2—see section 95.	9
	section 101 order , for Chapter 9—see section 100A.	10
	senior next of kin —see section 6A.	11
	sibling includes a half-sibling, adoptive sibling and step-sibling.	12
[5] Section 5		13
	Omit the section.	14
	Insert instead—	15
	5 Meaning of “relative”	16
	(1) For this Act, a person is a relative of a deceased person if the person is—	17
	(a) a spouse of the deceased person, or	18
	(b) a child of the deceased person, or	19
	(c) a parent of the deceased person, or	20
	(d) a sibling of the deceased person, or	21
	(e) if the senior next of kin of the deceased person is not a person referred to in paragraphs (a)–(d)—the senior next of kin.	22 23
	(2) If the deceased person was an Aboriginal or Torres Strait Islander person, or was from another cultural background with a system of extended family or kinship, a coroner may, for this Act, treat another adult who is a member of the extended family or kin of the deceased person as a relative of the deceased person.	24 25 26 27 28
[6] Sections 6A–6D		29
	Omit section 6A.	30
	Insert instead—	31
	6A Meaning of “senior next of kin”	32
	(1) For this Act, the senior next of kin of a deceased person is—	33
	(a) a person who, under section 6B, is the presumed next of kin of the deceased person, or	34 35
	(b) if a coroner appoints a person as the appointed next of kin of the deceased person under section 6C—the appointed next of kin.	36 37
	(2) A coroner may, from time to time, treat a deceased person’s legal personal representative as the senior next of kin of the deceased person if the senior next of kin is not reasonably available.	38 39 40
	6B Meaning of “presumed next of kin”	41
	(1) For this Act, the presumed next of kin of a deceased person is—	42

-
- (a) the spouse of the deceased person, or 1
 - (b) if the spouse is not reasonably available—one or more adult children of the deceased person, or 2
3
 - (c) if the spouse or an adult child is not reasonably available—the parents of the deceased person, or 4
5
 - (d) if the spouse, an adult child or a parent is not reasonably available—one or more adult siblings of the deceased person, or 6
7
 - (e) if the spouse, an adult child, a parent or an adult sibling is not reasonably available— 8
9
 - (i) a person named as an executor in the deceased person’s will, or 10
 - (ii) the deceased person’s legal personal representative, or 11
 - (f) if the persons referred to in paragraphs (a)–(e) are not reasonably available—a person who, in the coroner’s opinion, is an appropriate person to be recognised as the presumed next of kin because the person has or had a relevant personal connection with the deceased person. 12
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14
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- Example—** If the deceased person did not have a spouse and there are 3 adult children, each of the adult children may be a presumed next of kin of the deceased person. 16
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18
- (2) If the deceased person was an Aboriginal or Torres Strait Islander person, or was from another cultural background with a system of extended family or kinship, a coroner may, despite subsection (1), treat one or more members of the extended family or kin of the deceased person as the presumed next of kin if the coroner is satisfied it is appropriate. 19
20
21
22
23
 - (3) A person referred to in subsection (1)(f) or (2) who is available, willing and able to act as the senior next of kin of the deceased person may notify the coroner of the person’s availability to be considered under this section. 24
25
26
 - (4) In this section— 27
 - relevant personal connection**, with a deceased person, means— 28
 - (a) a close personal relationship with the deceased person, and 29
 - (b) responsibility for, or a genuine interest in, the deceased person’s welfare and best interests. 30
31
- 6C Appointed next of kin** 32
- (1) This section applies if a coroner is satisfied that— 33
 - (a) the process for determining the presumed next of kin of the deceased person under section 6B(1) or (2) results in— 34
35
 - (i) more than one person being the presumed next of kin of the deceased person, and 36
37
 - (ii) disagreement between the presumed next of kin about— 38
 - (A) which of the presumed next of kin should be taken to be the senior next of kin, or 39
40
 - Example—** The deceased person did not have a spouse and there are 3 adult children, each of whom wishes to act alone as the senior next of kin of the deceased person. 41
42
43
 - (B) a decision required to be made by the senior next of kin, or 44
 - (b) it is not appropriate in the circumstances for the presumed next of kin of the deceased person to act as the senior next of kin of the deceased person. 45
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- | | | |
|-----------|--|----------------|
| (2) | The coroner may appoint an adult as the next of kin of the deceased person (the <i>appointed next of kin</i>). | 1
2 |
| (3) | Before appointing a person under this section, the coroner must take reasonable steps to notify each eligible person that the coroner is considering appointing an appointed next of kin of the deceased person. | 3
4
5 |
| (4) | When deciding to appoint a person, the coroner must— | 6 |
| | (a) have regard to the person who, in the circumstances, is the most appropriate person to act as the senior next of kin of the deceased person, and | 7
8
9 |
| | (b) consider allegations that the person, or a presumed next of kin of the deceased person, has engaged in domestic abuse against the deceased person. | 10
11
12 |
| (5) | If a coroner appoints a person as the appointed next of kin of the deceased person, the coroner must— | 13
14 |
| | (a) make the appointment as soon as reasonably practicable in the circumstances, and | 15
16 |
| | (b) take reasonable steps to notify each eligible person of the appointment. | 17 |
| (6) | In this section— | 18 |
| | <i>domestic abuse</i> has the same meaning as in the <i>Crimes (Domestic and Personal Violence) Act 2007</i> . | 19
20 |
| | <i>eligible person</i> means a person— | 21 |
| | (a) the coroner considers eligible to be the presumed next of kin of the deceased person, and | 22
23 |
| | (b) who has notified the coroner that the person wishes to be the deceased person's senior next of kin. | 24
25 |
| 6D | Application to Supreme Court for order about appointed next of kin | 26 |
| (1) | A person may, with the leave of the Supreme Court, apply to the Court for one or both of the following orders— | 27
28 |
| | (a) an order to remove a person appointed under section 6C as the appointed next of kin of a deceased person, | 29
30 |
| | (b) an order to appoint a person as the appointed next of kin of a deceased person. | 31
32 |
| (2) | The Supreme Court must refuse leave to make the application if, in the Court's opinion— | 33
34 |
| | (a) the person seeking leave to make the application is not a person referred to in section 6B(1) or (2), or | 35
36 |
| | (b) the person has not sought leave to make the application within a reasonable time after the decision was made, or | 37
38 |
| | (c) it would otherwise be inappropriate or unreasonable to grant the person leave to make the application. | 39
40 |
| (3) | The Supreme Court may determine an application by— | 41 |
| | (a) making the order applied for, or | 42 |
| | (b) making a different order, or | 43 |
| | (c) making an order referring the matter back to the coroner for reconsideration, or | 44
45 |
| | (d) refusing to make an order. | 46 |
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(4)	If the Supreme Court grants leave to make an application under this section, the coroner's appointment under section 6C is stayed until the Court determines the application in accordance with subsection (3).	1 2 3
(5)	The regulations may prescribe the maximum period of time that may be considered reasonable for subsection (2)(b).	4 5
[7]	Section 38 Medical practitioner must not certify cause of death if death is reportable	6
	Omit section 38(3).	7
	Insert instead—	8
(3)	A medical practitioner may not certify the cause of death of a person under subsection (2) if, before the certificate is given, a relative of the deceased person indicates to the medical practitioner that the relative objects to the certificate being given.	9 10 11 12
[8]	Section 57 Representation in coronial proceedings	13
	Omit section 57(3).	14
	Insert instead—	15
(3)	A coroner holding an inquest into the death of a person must grant leave under subsection (1) to a person who is a relative of the deceased person unless the coroner is satisfied there are exceptional circumstances that justify refusing to grant leave.	16 17 18 19
[9]	Section 75 Powers of coroner in relation to reports or proceedings concerning self-inflicted deaths	20 21
	Omit section 75(3).	22
[10]	Section 91A	23
	Insert after section 91—	24
91A	Application to Supreme Court to revoke exhumation warrant	25
(1)	A person may, with the leave of the Supreme Court, apply to the Court for an order revoking a decision by a coroner to issue an exhumation warrant under section 91.	26 27 28
(2)	The Supreme Court must refuse leave to make the application if, in the Court's opinion—	29 30
(a)	the person seeking leave to make the application does not have a sufficient connection with the deceased person, or	31 32
(b)	the person has not sought leave to make the application within a reasonable time after the Coroner's decision was made, or	33 34
(c)	it would otherwise be inappropriate or unreasonable to grant the person leave to make the application.	35 36
(3)	The Supreme Court may determine an application by—	37
(a)	making the order applied for, or	38
(b)	refusing to make the order.	39
(4)	If the Supreme Court grants leave to make an application under this section, the execution of the exhumation warrant is stayed until the application is determined by the Court.	40 41 42

(5)	The regulations may prescribe the maximum period of time that may be considered reasonable for subsection (2)(b).	1 2
[11]	Section 95A	3
	Insert before section 95—	4
	95A Definition	5
	In this part—	6
	<i>authorised person</i> —see section 98(1).	7
[12]	Section 96	8
	Omit the section.	9
	Insert instead—	10
	96 Objections by senior next of kin to exercise of relevant post mortem investigative functions	11 12
(1)	The senior next of kin of a deceased person may ask a coroner or an assistant coroner not to exercise a relevant post mortem investigative function in relation to the deceased person.	13 14 15
(2)	The request may be made—	16
(a)	in writing, or	17
(b)	if the coroner or assistant coroner considers it appropriate in the circumstances—verbally.	18 19
(3)	If a request is made to an assistant coroner, the assistant coroner—	20
(a)	must not make any further decision about the exercise of the relevant post mortem investigative function, and	21 22
(b)	must refer the request to a coroner.	23
(4)	The coroner to whom the request is made or referred must, as soon as practicable, consider the request and decide whether or not the relevant post mortem investigative function should be exercised.	24 25 26
(5)	If the coroner decides the post mortem examination or whole organ retention is necessary or desirable, the coroner must immediately give the senior next of kin written notice of the decision.	27 28 29
(6)	The notice of the decision must—	30
(a)	if the notice relates to a post mortem examination—indicate the earliest time the post mortem examination may be conducted, being no earlier than 48 hours after the senior next of kin is given the notice, and	31 32 33
(b)	state that the senior next of kin may apply to the Supreme Court for an order that the post mortem examination not be conducted or the whole organ not be retained.	34 35 36
(7)	The coroner may refuse a request by the senior next of kin that a post mortem examination not be conducted on the deceased person if the coroner is satisfied the senior next of kin has been, or may be, charged with an offence in connection with the deceased person's death.	37 38 39 40
(8)	Subsection (7) does not prevent another person appointed as or taken to be the senior next of kin from asking that a post mortem examination not be conducted on the deceased person.	41 42 43

[13] Section 97 Applications to Supreme Court by senior next of kin	1
Omit “section 96(3)” from section 97(1).	2
Insert instead “section 96(5)”.	3
[14] Section 98	4
Omit the section.	5
Insert instead—	6
98 Senior next of kin may authorise another person to exercise functions	7
(1) The senior next of kin of a deceased person may authorise another person (the <i>authorised person</i>) to exercise the senior next of kin’s functions under this part, other than this power of authorisation.	8 9 10
(2) The authorisation may be—	11
(a) given in writing, or	12
(b) if the coroner or assistant coroner considers it appropriate in the circumstances—communicated to the coroner or assistant coroner verbally.	13 14 15
(3) The authorised person may make a request to a coroner or assistant coroner under this part only if the coroner or assistant coroner—	16 17
(a) has been given a copy of the written authorisation, or	18
(b) has allowed the authorisation to be communicated verbally and has received that communication.	19 20
(4) The authorised person may make an application to the Supreme Court under this part only if the Court—	21 22
(a) has been given a copy of the written authorisation, or	23
(b) has received confirmation from the relevant coroner or assistant coroner that the coroner or assistant coroner allowed the authorisation to be communicated verbally and received that communication.	24 25 26
(5) Despite subsection (1), if a coroner has refused a request by the senior next of kin that a post mortem examination not be conducted on the deceased person under section 96(7), the senior next of kin may not authorise another person to make the request.	27 28 29 30
[15] Chapter 9, heading	31
Omit “Disposal”.	32
Insert instead “Interment or other disposition”.	33
[16] Section 100A	34
Insert before section 100—	35
100A Definition	36
In this chapter—	37
<i>section 101 order</i> means an order made by a coroner under section 101.	38
[17] Section 100, heading	39
Omit “disposal”.	40
Insert instead “interment or other disposition”.	41

[18] Section 100(1)	1
Omit “bury or cremate human remains, or place human remains in a mausoleum or other permanent resting place, or cause the remains to be so buried, cremated or placed,”.	2
	3
Insert instead “bury, cremate or otherwise inter human remains, or arrange for the remains to be buried, cremated or otherwise interred,”.	4
	5
[19] Section 100(1)(a)	6
Omit “in his or her possession, an appropriate disposal authorisation for the disposal of the remains”.	7
	8
Insert instead “in the person’s possession, an appropriate authorisation relating to the remains”.	9
	10
[20] Section 100(1)(b)	11
Omit “disposal”.	12
Insert instead “burial, cremation or other interment”.	13
[21] Section 100(2)	14
Omit “(other than cremated remains) from the State, or cause such remains to be so delivered, handed over or removed,”.	15
	16
Insert instead “, other than cremated remains, from the State, or arrange for the remains to be delivered or handed over for anatomical or medical research or removed from the State,”.	17
	18
[22] Section 100(2)(a)	19
Omit “an appropriate disposal authorisation for the disposal of the remains”.	20
Insert instead “an appropriate authorisation relating to the remains”.	21
[23] Section 100(2)(b)	22
Omit “disposal”.	23
Insert instead “delivery, handing over or removal”.	24
[24] Section 100(3)	25
Omit the subsection.	26
Insert instead—	27
(3) In this section—	28
<i>appropriate authorisation</i> means—	29
(a) in relation to the remains of a deceased person, other than a stillborn child—	30
	31
(i) a notice given by a medical practitioner under the <i>Births, Deaths and Marriages Registration Act 1995</i> , section 39 relating to the deceased person, or	32
	33
	34
(ii) a section 101 order relating to the remains, or	35
(iii) a certificate issued under the <i>Births, Deaths and Marriages Registration Act 1995</i> , section 51 relating to the deceased person,	36
or	37
	38
(b) in relation to the remains of a stillborn child—	39

	(i)	a certificate or notice given by a medical practitioner under the <i>Births, Deaths and Marriages Registration Act 1995</i> , section 12(3) relating to the stillborn child, or	1 2 3
	(ii)	a section 101 order relating to the remains.	4
[25]	Sections 101 and 101AA		5
		Omit section 101.	6
		Insert instead—	7
101	Orders authorising release of human remains for interment or other disposition		8 9
	(1)	A coroner may, by written order, authorise the following (an <i>authorised purpose</i>)—	10 11
	(a)	the burial, cremation or other interment of human remains,	12
	(b)	the delivery or handing over of human remains for anatomical or medical research,	13 14
	(c)	the removal of human remains from the State.	15
		Note— The <i>Anatomy Act 1977</i> and the <i>Human Tissue Act 1983</i> regulate the circumstances under which human remains may be used in anatomical or medical research.	16 17 18
	(2)	The order may be made—	19
	(a)	on the coroner’s own motion, or	20
	(b)	on application by a person.	21
	(3)	The order—	22
	(a)	must specify the person to whom the remains may be released for the authorised purpose, and	23 24
	(b)	may include the conditions the coroner considers necessary.	25
	(4)	An application may be made under subsection (2)(b) only if—	26
	(a)	a section 101 order has not previously been made in relation to the remains, or	27 28
	(b)	a section 101 order has previously been made in relation to the remains, but the person to whom the remains may be released under the order has not accepted the release of the remains within a reasonable time after the order was made.	29 30 31 32
	(5)	For subsection (3)(a), the coroner must determine the person to whom the remains may be released having regard to the following principles—	33 34
	(a)	for an order made on the coroner’s own motion—the remains should be released to the senior next of kin of the deceased person or an authorised person unless—	35 36 37
	(i)	the senior next of kin or authorised person is not reasonably available, or	38 39
	(ii)	the senior next of kin or authorised person has not, after a reasonable time, accepted the release of the remains under a previous order,	40 41 42
	(b)	otherwise—	43
	(i)	if the senior next of kin of the deceased person or an authorised person is an applicant—the remains should be released to the senior next of kin or authorised person, or	44 45 46

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- (ii) if the senior next of kin or an authorised person is not an applicant—the remains should be released to a person named as an executor in the deceased person’s will, or
 - (iii) if the applicants do not include the senior next of kin, an authorised person or an executor—the coroner should determine the person to whom the remains may be released having regard to—
 - (A) the principles of common law relating to the release of a body of a deceased person, and
 - (B) whether the person is able and willing to take possession of the remains.
 - (6) Subsection (5) does not apply to unidentified remains.
 - (7) Without limiting subsection (1), the order may be made by a coroner who—
 - (a) is holding, has held or is intending to hold an inquest into the death of the deceased person, or
 - (b) has decided not to hold an inquest into the death of the deceased person.
 - (8) If the remains are those of a stillborn child and a medical practitioner has not certified the cause of foetal death, the order may only be made by a coroner who—
 - (a) has been informed by a police officer of the stillbirth, and
 - (b) is, after considering the information in the coroner’s possession, satisfied the stillbirth occurred.

Note— A coroner may, under section 89(2), give an appropriate medical investigator a post mortem investigation direction to conduct an examination of the remains to determine whether the remains are those of a stillborn child.
 - (9) If a coroner makes an order under subsection (1) and it is later established at an inquest that the remains were those of a stillborn child, the order is valid and is taken to have been made under subsection (8).
 - (10) In this section—

authorised person means a person authorised by the senior next of kin of a deceased person for the purposes of accepting the release of the deceased person’s remains.

released means released from the control of the coroner or another person.
- 101AA Application to Supreme Court for order about release of human remains**
- (1) A person may, with the leave of the Supreme Court, apply to the Court for an order to vary a section 101 order as follows—
 - (a) to change the person to whom the human remains may be released,
 - (b) to vary the conditions of the order.
 - (2) The Supreme Court must refuse leave to make the application if, in the Court’s opinion—
 - (a) the person seeking leave to make the application does not have a sufficient connection with the deceased person, or
 - (b) the person has not sought leave to make the application within a reasonable time after the decision was made, or
 - (c) it would otherwise be inappropriate or unreasonable to grant the person leave to make the application.
 - (3) The Supreme Court may determine an application by—

- (a) making the order applied for, or 1
 - (b) making a different order, or 2
 - (c) refusing to make an order. 3
- (4) If the Supreme Court grants leave to make an application under this section, 4
the section 101 order is stayed until the Court determines the application in 5
accordance with subsection (3). 6
- (5) The regulations may prescribe the maximum period of time that may be 7
considered reasonable for subsection (2)(b). 8